

THE ESTIMATES OF SEPTEMBER 18, 2026

TO Katie Gauthier, External Relations Manager, Oregon Parks and Recreation Department
VIA oprd.publicrecords@oprd.oregon.gov
COPY Director Lisa Sumption; Deputy Director J.R. Collier; Oregon Parks and Recreation Commission, Public Comment; Governor Tina Kotek
RE Requests of September 5, 2026 and September 11, 2026
FROM Robert Samuel White, [mailing address]
DATE September 18, 2026

Both estimates arrived this afternoon, eight minutes apart. The request of September 5 is priced at fifty to fifty-four hours of staff time, one thousand six hundred to one thousand seven hundred twenty-eight dollars. The request of September 11 is priced at two and a half hours, eighty dollars.

I dispute both. I am not paying either one, and I am not narrowing anything.

I will state the position once so there is no ambiguity in the file. I do not pay for records I have a right to see. The Oregon Public Records Law does not condition my right to inspect the conduct of the agency that dismissed me on my ability to produce money. Every record produced to me is published in full, at no charge, where anyone in Oregon can read it. The public pays nothing for what I obtain and I will not pay the Department for the privilege of doing that work on its behalf.

The waiver neither estimate answers

My request of September 5 asked for a fee waiver under ORS 192.324(5) and stated the grounds: these records concern how the two highest officials of the Department handled a documented complaint of retaliation by their own staff, I have no commercial purpose, and everything produced is published for free.

Neither estimate grants that waiver. Neither denies it. Neither mentions it. A reduced hourly rate under OAR 736-001-0030 is not a determination on a public interest waiver; it is a discount on a bill. The statute requires a decision, and the decision is what I asked for.

The authority to make it does not sit with External Relations. Under ORS 192.324(5) the discretion belongs to the custodian, and the Department's custodian is its Director. A waiver is available at the Director's level and has been available at every point in this matter.

Director Sumption is copied on this letter, as she was copied on the request. She is also the subject of it. Items 1 and 3 of the September 5 request are her own communications. The person who

holds the power to waive the fee is the person the records are about, and she is choosing not to exercise it. That choice is now part of the record these requests are creating.

Every estimate this Department has given me

This is the fourth time a request of mine has been answered with a number.

In November 2025 I learned that the response to my thirty-three category request of August 2025 had been sitting since August 29 on an internal portal I had no access to and was never told existed, carrying estimates in the tens of thousands of dollars. I withdrew the request.

On April 10, 2026 the Department priced the volunteer program categories at forty to eighty hours each. The law enforcement coordination records, the ones that would show what the Department sent to the police before three armed officers came to my residence, were priced at two to five hours.

Today, on the September 5 request, the Department priced every communication concerning me sent or received by Director Sumption, in any medium, including text message and any messaging application, on any device or account used for Department business, at six hours. It priced the notes, memoranda, summaries and calendar entries authored by the same two people, over the same nineteen months, about the same subject, at forty hours.

The broader search costs one seventh of the narrower one. Searching every message on every device belonging to the Director takes six hours, and searching two people's own notes and calendar takes forty. Both figures cannot be true. Forty of the fifty-four hours billed, three quarters of that invoice, sit on the one item that would contain a written instruction about how staff should handle me, and item 5, which asks for exactly that, was folded into item 4 rather than priced at all.

I reject forty hours for item 4 and I reject forty to eighty hours per category from April. No one at this Department has ever shown me the basis for any of these figures: not the systems searched, not the search terms, not the volume returned, not the hourly output assumed. An estimate that cannot be checked is not an estimate.

The narrowing offer

You offered to reduce item 4 if I accept a title file search. Notes, memoranda and calendar entries are responsive because of what is inside them. A search of file titles does not read them. The offer is to conduct, at my request and at a discount, a search built not to find the records.

The record you say does not exist

On the September 11 request, item 2 asked for the version history log for the Timeline of Events document: the date, time, and account associated with each saved version. The Department's answer is "This is not a record we have."

On the same page, item 1, the Department agrees to produce the SharePoint or OneDrive version histories of that same document for one hour of staff time. A SharePoint version history is a list of saved versions with the date, time, and account for each one. The Department cannot hold the version histories and not hold the version log. They are the same thing.

The document's own properties, as produced to me by the Oregon State Police on September 3, 2026, record twenty-three revisions and one hundred ninety-three minutes of editing time, with a creation date of March 25, 2025 and a last modification of January 21, 2026. The saves exist. The Department is the custodian of the system they were made on.

I do not accept "this is not a record we have" as to item 2. If the Department maintains that answer, state it as a denial, identify who made it, and state the search performed to reach it.

What I require

Produce all five items of the September 5 request and all four items of the September 11 request, in full, at no cost, under ORS 192.324(5).

There will be no negotiation of scope, no call, and no meeting. Do not propose one. My requests are the requests.

If the Department does not produce the records, my next step is a suit to compel disclosure under ORS 192.415, filed in circuit court on my timetable and not on the Department's. I will not be petitioning the Attorney General under ORS 192.411. I have used that route and I am not using it again.

Robert Samuel White